

Court No. - 3

Case :- WRIT - C No. - 18265 of 2022

Petitioner :- Sachin

Respondent :- State of U.P. and Another

Counsel for Petitioner :- Deepak Yadav, Mamta Shukla

Counsel for Respondent :- C.S.C., Rajesh Yadav

Hon'ble Surya Prakash Kesarwani, J.

Hon'ble Jayant Banerji, J.

1. Heard learned counsel for the petitioner, learned Standing Counsel for the State-respondent, and Shri Rajesh Yadav, learned counsel for all the respondent no.2.

2. This writ petition has been filed praying for the following relief :

"(A) Issue a writ, order or direction in the nature of writ of certiorari quashing the impugned demand notice dated 05.12.2020 (Annexure No. 4 to the writ petition) issued by the respondent No.2."

3. Learned counsel for the respondent no.2/Executive Engineer, states on instructions that the petitioner may file objection against the impugned demand which shall be decided in accordance with law within a time bound period.

4. In view of the aforesaid and without expressing any opinion on merits of the case of the petitioner, **this writ petition is disposed of** giving liberty to the petitioner to submit his objection under Para 6.8 of U.P. Electricity Supply Code, 2005 before the respondent no.2 within four weeks from today alongwith a certified copy of this order. In the event, such an objection is submitted within the stipulated period, it shall be decided by the respondent no.2 in accordance with law within next four weeks, after affording reasonable opportunity of hearing to the petitioner.

5. For a period of eight weeks or till the disposal of the

objection of the petitioner, whichever is earlier, no coercive action shall be taken against the petitioner in pursuance of the impugned demand/notice.

Order Date :- 6.7.2022

SK